SOURCEBOOK

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CHAPTER

DISP App 5 Relevant motor finance discretionary commission arrangement complaint and motor finance non-discretionary commission arrangement complaint handling rules

Section : DISP App 5.1 Purpose, interpretation and application

Purpose

DISP App 5.1.1 G

(1) This appendix contains *rules* and *guidance* in relation to a *relevant motor finance DCA complaint* and a *motor finance non-DCA complaint* that:

(a) apply and modify the *rules* and *guidance* in *DISP 1.2* (Consumer awareness rules), *DISP 1.6* (Complaints time limit rules) and *DISP 2.8* (Was the complaint referred to the Financial Ombudsman Service in time?); and

(b) require *lenders*, *owners* and *credit brokers* to retain and preserve relevant records.

(2) Where, in relation to either a *relevant motor finance DCA complaint* or a *motor finance non-DCA complaint*, provisions in *DISP 1* or *2* refer to *rules* or *guidance* that are modified by this appendix, the modified provisions apply.

(3) All *rules* and *guidance* in *DISP* continue to apply to a *relevant motor finance DCA complaint* and a *motor finance non-DCA complaint* unless otherwise stated.

Interpretation

DISP App 5.1.2 R

(1) A relevant motor finance DCA complaint is a *complaint* where:

1. (a) the subject matter of the *complaint* relates, in whole or part, to a *regulated credit agreement* entered into before 28 January 2021;
2. (b) the *regulated credit agreement*, in whole or part, financed the purchase of a motor vehicle, or a motor vehicle was bailed or hired under the agreement;
3. (c) there were arrangements between the *lender* and a *credit broker* relating to the entering into of that agreement that included a *discretionary commission arrangement*; and
4. (d) the *respondent*:
   1. (i) received the *complaint* in the period beginning with 17 November 2023 and ending with 31 May 2026; or
   2. (ii) sent a *final response* to the *complaint* in the period beginning with 12 July 2023 and ending with 26 July 2026.

(2) The arrangements referred to in (1)(c) are to be read as including any arrangement which would, if it had been entered into on or after 28 January 2021, have constituted a *discretionary commission arrangement*.

DISP App 5.1.3 G

(1) The purpose of *DISP App 5.1.2R(2)* is to ensure that the *complaint* handling *rules* in

this appendix apply in respect of motor finance commission arrangements which are in substance equivalent to a *discretionary commission arrangement* but do not (because of the time at which they were entered into) meet the *Handbook* definition.

(2) This will include such arrangements between persons undertaking equivalent activities under an Office of Fair Trading licence prior to the transfer of responsibility for the regulation of consumer credit to the *FCA* on 1 April 2014 (provided the other requirements in *DISP App 5.1.2R(1)* are met).

(3) The effect of *DISP App 5.1.2R(2)* is that a *relevant motor finance DCA complaint* includes *complaints* involving any motor finance commission arrangements which would, if they were entered into on or after the date that the prohibition in *CONC 4.5.6R* was introduced, fall within the definition of a *discretionary commission arrangement*.

Motor finance non-DCA complaint: 26 October 2024 until 4 December 2025

DISP App 5.1.3A R

From 26 October 2024 to 4 December 2025 inclusive, a motor finance non-DCA complaint is a *complaint* where:

(1) the subject matter of the *complaint* relates, in whole or part, to a *regulated credit agreement* or a *regulated consumer hire agreement*;

(2) the *regulated credit agreement* or the *regulated consumer hire agreement*, in whole or part, financed the purchase of a motor vehicle, or a motor vehicle was bailed or hired under the agreement;

(3) there were arrangements between the *lender* or *owner* and a *credit broker* relating to the entering into of that agreement that provided for the payment (directly or indirectly) of any commission, fee or other financial consideration or remuneration including a benefit of any kind to the *credit broker*;

(4) the *complaint* is not a *relevant motor finance DCA complaint* as defined in *DISP App 5.1.2R*; and

(5) the *respondent*:

1. (a) received the *complaint* in the period beginning with 26 October 2024 and ending with 4 December 2025; or
2. (b) sent a *final response* to the *complaint* in the period beginning with 21 June 2024 and ending with 29 January 2026.

Motor finance non-DCA complaint: 5 December 2025 onwards

DISP App 5.1.3B R

On or after 5 December 2025, a *motor finance non-DCA complaint* is a *complaint* which has the same meaning as in *DISP App 5.1.3AR* except that:

(1) the references to a *regulated consumer hire agreement* in *DISP App 5.1.3AR(1)* and *(2)* are respectively omitted;

(2) *DISP App 5.1.3AR(5)(a)* is substituted with: 'received the *complaint* in the period beginning with 26 October 2024 and ending with 31 May 2026;'; and

(3) *DISP App 5.1.3AR(5)(b)* is substituted with: 'sent a *final response* to the *complaint* in the period beginning with 21 June 2024 and ending with 26 July 2026.'.

DISP App 5.1.3C G

(1) The definition of *motor finance non-DCA complaint* in *DISP App 5.1.3BR* does not include *regulated consumer hire agreements* on or after 5 December 2025.

(2) Accordingly, a *motor finance non-DCA complaint* which relates to a *regulated consumer hire agreement* will on or after 5 December 2025 no longer benefit from the effect of the *rule* in *DISP App 5.2.1BR* and instead will fall to be considered in accordance with *DISP App 5.2.1CR*.

(3) A *motor finance non-DCA complaint* which relates to a *regulated credit agreement* but not a *regulated consumer hire agreement* will on or after 5 December 2025 benefit from the effect of the extended pause in *DISP App 5.2.1BR*.

(4) *DISP App 5.2.1BR*, among other things, stops time running for the purpose of calculating the 8-week period that is relevant to when a complainant can refer their *complaint* to the *Financial Ombudsman Service*.

Application

DISP App 5.1.4 R

This appendix applies to:

(1) *respondents* and the *Ombudsman* in respect of a *relevant motor finance DCA complaint* or a *motor finance non-DCA complaint*;

(2) *lenders* and *credit brokers* in respect of records relating to any *regulated credit agreement* entered into before 28 January 2021 that meets the requirements in *DISP App 5.1.2R(1)(b) and (c)*; and

(3) *lenders*, *owners* and *credit brokers* in respect of records relating to any *regulated credit agreement* or *regulated consumer hire agreement* that meets the requirements in *DISP App 5.1.3AR(2)* and *(3)*.

DISP App 5.1.5 R

Where this appendix applies or modifies provisions in *DISP 2*, the term *respondent* in *DISP App 5.1.2R*, *5.1.3AR* and *5.1.4R* has the *Glossary* meaning that applies in that chapter.

Section : DISP App 5.2 Complaint handling rules in respect of a relevant motor finance DCA complaint and a motor finance non-DCA complaint

Time limits for a final response: relevant motor finance DCA complaint

DISP App 5.2.1 R

(1) This *rule* applies in respect of a *relevant motor finance DCA complaint*:

1. (a) that is received by the *respondent* in the period beginning with 17 November 2023 and ending with 31 May 2026; and

2. (b) in relation to which a *final response* has not been sent.

(2) For the purpose of calculating the eight-week period in:

(a) *DISP 1.6.2R*;

(b) *DISP 1.6.7G*;

(c) *DISP 2.8.1R(2)*; and

(d) *DISP 2.8.1R(4)(a)*,

time is to be treated as not running for the period beginning with 11 January 2024 and ending with 31 May 2026.

(3) The three-year period in *DISP 1.9.1R(2)* (Complaints record rule) is to be treated as not running for the period beginning with 11 January 2024 and ending with 31 May 2026.

DISP App 5.2.1A G

DISP App 5.2.1R(2) has the effect of extending the period during which the eight weeks referenced in the specified provisions are not treated as running for *relevant motor finance DCA complaints* received between 17 November 2023 and 4 December 2025. For relevant *complaints* that were received between 17 November 2023 and 25 September 2024, the time period had previously been modified (see *Dispute Resolution: Complaints Sourcebook (Motor Finance Discretionary Commission Arrangement Complaints) Instrument 2024 (FCA 2024/1)*).

Time limits for a final response: motor finance non-DCA complaint

DISP App 5.2.1B R

(1) This *rule* applies in respect of a *motor finance non-DCA complaint*:

1. (a) that is received by the *respondent* in the period beginning with 26 October 2024 and ending with 4 December 2025;

2. (b) where the *complaint*:

(i) relates in whole or part to a *regulated credit agreement*; and

(ii) does not relate to a *regulated consumer hire agreement*; and

(c) in relation to which a *final response* has not been sent.

(1A) This *rule* also applies in respect of a *motor finance non-DCA complaint*:

(a) that is received by the *respondent* in the period beginning with 5 December 2025 and ending with 31 May 2026; and

(b) in relation to which a *final response* has not been sent.

(2) For the purpose of calculating the eight-week period in:

(a) *DISP 1.6.2R*;

(b) *DISP 1.6.7G*;

(c) *DISP 2.8.1R(2)*; and

(d) *DISP 2.8.1R(4)(a)*,

time is to be treated as not running for the period beginning with 20 December 2024 and ending with 31 May 2026.

(3)

The three-year period in *DISP 1.9.1R(2)* (Complaints record rule) is to be treated as not running for the period beginning with 26 October 2024 and ending with 31 May 2026.

Time limits for a final response: motor finance non-DCA complaint which relates to a regulated consumer hire agreement

DISP App 5.2.1C R

(1) This *rule* applies in respect of a *motor finance non-DCA complaint*:

(a) that is received by the *respondent* in the period beginning with 26 October 2024 and ending with 4 December 2025;

(b) where the *complaint* relates to a *regulated consumer hire agreement*; and

(c) in relation to which a *final response* has not been sent.

(2) For the purpose of calculating the eight-week period in:

(a) *DISP 1.6.2R*;

(b) *DISP 1.6.7G*;

(c) *DISP 2.8.1R(2)*; and

(d) *DISP 2.8.1R(4)(a)*,

time will continue to run on or after 5 December 2025.

(3) A *respondent* must send the complainant a *final response* in accordance with *DISP 1.6.2R*.

DISP App 5.2.1D G

(1) The effect of *DISP App 5.2.1CR* is that where the eight-week period for a *respondent* to provide a *final response* is, by virtue of the *rule* in *DISP App 5.2.1BR*, paused up to and including 4 December 2025, the time period for a response in respect of a *complaint* which relates to a *regulated consumer hire agreement* resumes on 5 December 2025.

(2) This means the *respondent* must send the *final response* to the complainant on or before the expiry of the eight-week period from receipt of the response, excluding any period beginning 26 October 2024 and ending with 4 December 2025 for which time was not treated as running by virtue of the *rule* in *DISP App 5.2.1BR*.

Time limits for referring a complaint to the Ombudsman: relevant motor finance DCA complaint

DISP App 5.2.2 R

(1) This *rule* applies where a *final response* to a *relevant motor finance DCA complaint* is sent in the period beginning with 12 July 2023 and ending with 29 January 2026.

(2) If a *final response* is sent in the period beginning with 12 July 2023 and ending with

29 April 2025, *DISP 2.8.2R(1)* is modified so that the *Ombudsman* cannot consider a *complaint* if it is referred to the *Financial Ombudsman Service* on or after 30 July 2026.

(3) If a *final response* is sent in the period beginning with 30 April 2025 and ending with 29 January 2026, *DISP 2.8.2R(1)* is modified so that the *Ombudsman* cannot consider a *complaint* if it is referred to the *Financial Ombudsman Service* more than fifteen *months* after the date on which the *respondent* sent the complainant its *final response*.

(4) If a *final response* is sent on or after 30 January 2026, *DISP 2.8.2R(1)* applies.

DISP App 5.2.2A G

(1) *DISP App 5.2.2R* has the effect of extending the time in which a *relevant motor finance DCA complaint* can be referred to the *Financial Ombudsman Service*. This includes those *complaints* in relation to which a *final response* was sent between 12 July 2023 and 25 September 2024 where the six-*month* period in *DISP 2.8.2R(1)* was previously extended to fifteen *months* (see Dispute Resolution: Complaints Sourcebook (Motor Finance Discretionary Commission Arrangement Complaints) Instrument 2024 (FCA 2024/1)).

(2) In respect of a *final response* to a *relevant motor finance DCA complaint* sent on or after 30 January 2026, the usual six-*month* period in *DISP 2.8.2R(1)* will resume. The *Ombudsman* cannot consider a *complaint* if it is referred to the *Financial Ombudsman Service* more than six *months* after the date on which the *respondent* sent the complainant its *final response*.

Time limits for referring a complaint to the Ombudsman: motor finance non-DCA complaint

DISP App 5.2.2B R

(1)
This *rule* applies where a *final response* to a *motor finance non-DCA complaint* (as defined in *DISP App 5.1.3AR*) is sent in the period beginning with 21 June 2024 and ending with 29 January 2026.

(2)
If a *final response* is sent in the period beginning with 21 June 2024 and ending with 29 April 2025, *DISP 2.8.2R(1)* is modified so that the *Ombudsman* cannot consider a *complaint* if it is referred to the *Financial Ombudsman Service* on or after 30 July 2026.

(3)
If a *final response* is sent in the period beginning with 30 April 2025 and ending with 29 January 2026, *DISP 2.8.2R(1)* is modified so that the *Ombudsman* cannot consider a *complaint* if it is referred to the *Financial Ombudsman Service* more than fifteen *months* after the date on which the *respondent* sent the complainant its *final response*.

DISP App 5.2.2C R

(1) This *rule* applies where a *final response* to a *motor finance non-DCA complaint* (as defined in *DISP App 5.1.3BR*) is sent on or after 30 January 2026.

(2) *DISP 2.8.2R(1)* applies to a *complaint* falling within this *rule*.

Communicating with consumers

DISP App 5.2.4 R

(1) A *respondent* must update any information it has published pursuant to *DISP 1.2.1R(1)* as soon as is practicable to:

1. (a) inform consumers of the pause to time limits for a *final response* to a *relevant motor finance DCA complaint* and a *motor finance non-DCA complaint* as set out in *DISP App 5.2.1R(2)* and *DISP App 5.2.1BR(2)*; and
2. (b) refer them to *fca.org.uk/carfinance*, which explains the reason for the pause.

(2) This *rule* applies until 23:59 on 26 July 2026.

Communicating with complainants about a relevant motor finance DCA complaint received between 17 November 2023 and 4 December 2025

DISP App 5.2.5A R

(1) This *rule* applies where a *respondent*:

1. (a) received a *relevant motor finance DCA complaint* in the period beginning with 17 November 2023 and ending with 25 September 2024; and
2. (b) has not sent a *final response* in relation to that *complaint*.

(2) A *respondent* must:

(a) promptly inform the complainant in writing of the extension to the pause to time limits as set out in *DISP App 5.2.1R(2)*; and

(b) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the pause.

(3) This *rule* applies until 23:59 on 4 December 2025.

DISP App 5.2.5B G

DISP App 5.2.5AR means that a *respondent* who sent a written acknowledgment to a *relevant motor finance DCA complaint* in the period beginning with 17 November 2023 and ending with 25 September 2024 should update the complainant that the pause to the eight-week period to send a *final response* now ends with 4 December 2025.

DISP App 5.2.5C R

(1) This *rule* applies where a *respondent* receives a *relevant motor finance DCA complaint* in the period beginning with 26 September 2024 and ending with 4 December 2025.

(2) When a *respondent* sends a written acknowledgement in accordance with *DISP 1.6.1R(1)*, they must also:

1. (a) inform the complainant in writing of the pause to the time limits as set out in *DISP App 5.2.1R(2)*; and
2. (b)

direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the pause.

(3) This *rule* applies until 23:59 on 4 December 2025.

Communicating with complainants about a relevant motor finance DCA complaint received on or after 5 December 2025

DISP App 5.2.5CA R

(1) This *rule* applies where a *respondent* receives a *relevant motor finance DCA complaint* on or after 5 December 2025.

(2) When sending a written acknowledgement in accordance with *DISP 1.6.1R(1)*, a *respondent* must:

(a) promptly inform the complainant in writing of the extension to the pause to time limits as set out in *DISP App 5.2.1R(2)*; and

(b) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the pause.

Communicating with complainants about a motor finance non-DCA complaint received between 26 October 2024 and 4 December 2025

DISP App 5.2.5D R

(1) This *rule* applies where a *respondent* receives a *motor finance non-DCA complaint* in the period beginning with 26 October 2024 and ending with 4 December 2025.

(2) Where a *respondent* has on or before 19 December 2024 sent a written acknowledgement in accordance with *DISP 1.6.1R(1)*, but has not sent a *final response* in accordance with *DISP 1.6.2R(1)*, the *respondent* must:

1. (a) promptly inform the complainant in writing of the pause to the time limits as set out in *DISP App 5.2.1BR(2)*; and
2. (b) comply with (4).

(3) Where a *respondent* has not, on or before 19 December 2024, sent a complainant a written acknowledgement in accordance with *DISP 1.6.1R(1)*, it must, when complying with that *rule*:

(a) inform the complainant of the pause to time limits set out in *DISP App 5.2.1BR(2)*; and

(b) comply with (4).

(4) A *respondent* must direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the pause.

(5) This rule applies until 23:59 on 4 December 2025.

Communicating with complainants about a motor finance non-DCA complaint received on or after 5 December 2025

DISP App 5.2.5E R

(1) This *rule* applies where a *respondent* receives a *motor finance non-DCA complaint* (as defined in *DISP App 5.1.3BR*) on or after 5 December 2025.

(2) When sending a written acknowledgement in accordance with *DISP 1.6.1R(1)*, a *respondent* must:

(a) promptly inform the complainant in writing of the extension to the pause to time limits as set out in *DISP App 5.2.1BR(2)*; and

2. (b) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the pause.

DISP App 5.2.5F G

DISP App 5.2.5ER means that a *respondent* who received a *motor finance non-DCA complaint* which does not relate to a *regulated consumer hire agreement* on or after 5 December 2025 should when sending a written acknowledgement inform the complainant in writing that the pause to the eight-week period to send a *final response* ends on 31 May 2026.

Communicating the Financial Ombudsman Service temporary time limits for a relevant motor finance DCA complaint: where a final response is sent between 26 September 2024 and 29 January 2026

DISP App 5.2.11 R

(1) This *rule* applies to a *relevant motor finance DCA complaint* where a *final response* is sent in the period beginning with 26 September 2024 and ending with 29 January 2026.

(2) When providing a *final response* in accordance with *DISP 1.6.2R(1)*, a respondent must:

(a) inform the complainant that the time limit to refer the *complaint* to the *Financial Ombudsman Service* has been extended in accordance with *DISP App 5.2.2R*;

(b) set out the date by which the complainant must refer the *complaint* to the *Financial Ombudsman Service*;

(c) explain that the six-*month* time limit contained in the *Financial Ombudsman Service's* standard explanatory leaflet does not apply; and

(d) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reason for the extension.

(3) For the purpose of complying with *DISP 1.6.2R(1)(e)* and *(f)* (if applicable), the wording to include in a *final response* is modified so that:

(a) references to ‘within six months of the date of this letter’ in *DISP 1 Annex 3R(1)* and *(2)* are substituted with ‘within fifteen months of the date of this letter’; and

(b) the reference to ‘is usually six months’ in *DISP 1 Annex 3R(3)* is substituted with ‘is, in this case, fifteen months’.

Communicating the Financial Ombudsman Service time limits for a relevant motor finance DCA complaint: where a final response is sent on or after 30 January 2026

DISP App 5.2.12 R

(1) This *rule* applies to a *relevant motor finance DCA complaint* where a *final response* is sent on or after 30 January 2026.

(2) When providing a *final response* in accordance with *DISP 1.6.2R(1)*, a *respondent* must:

1. (a) inform the complainant that the time limit to refer the *complaint* to the *Financial Ombudsman Service* is in accordance with *DISP 2.8.2R*; and

(b) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains why the six-*month* time limit contained in the *Financial Ombudsman Service* applies.

DISP App 5.2.13 G

DISP App 5.2.12R means that a *respondent* who sends a *final response* in respect of a *relevant motor finance DCA complaint* to a complainant on or after 30 January 2026 must inform that complainant of the usual six-*month* time limit to refer the *complaint* to the *Financial Ombudsman Service* pursuant to *DISP 2.8.2R(1)* (see *DISP 1.6.2R*).

Communicating the Financial Ombudsman Service temporary time limits for a motor finance non-DCA complaint: when a final response is sent between 21 June 2024 and 29 January 2026

DISP App 5.2.14 R

(1) This *rule* applies to a *motor finance non-DCA complaint* where:

(a) the *complaint*:

1. (i) relates in whole or in part to a *regulated credit agreement*; and

(ii) does not relate to a *regulated consumer hire agreement*; and

(b) a *final response* is sent in the period beginning with 21 June 2024 and ending with 29 January 2026.

(2) When providing a *final response* in accordance with *DISP 1.6.2R(1)*, a respondent must:

(a) explain that the time limit to refer the *complaint* to the *Financial Ombudsman Service* has been extended in accordance with *DISP App 5.2.2BR*;

(b) explain that the six-*month* time limit contained in the *Financial Ombudsman Service's* standard explanatory leaflet does not apply; and

(c) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains the reasons for the extension.

(3) For the purpose of complying with *DISP 1.6.2R(1)(e)* and *(f)* (if applicable), the wording to include in a *final response* is modified so that:

(a) references to 'within six months of the date of this letter' in *DISP 1 Annex 3R(1)* and *(2)*, are substituted with 'within fifteen months of the date of this letter'; and

(b) the reference to 'is usually six months' in *DISP 1 Annex 3R(3)* is substituted with 'is, in this case, fifteen months'.

Communicating the Financial Ombudsman Service time limits for a motor finance non-DCA complaint: when a final response is sent after 30 January 2026

DISP App 5.2.15 R

(1) This *rule* applies to a *motor finance non-DCA complaint* where a *final response* is sent on or after 30 January 2026.

(2) When providing a *final response* in accordance with *DISP 1.6.2R(1)*, a *respondent* must:

(a) inform the complainant that the time limit to refer the complaint to the *Financial Ombudsman Service* is in accordance with *DISP 2.8.2R*; and

(b) direct the complainant to the information published at *fca.org.uk/carfinance*, which explains why the six-*month* time limit contained in the *Financial Ombudsman Service* applies.

DISP App 5.2.16 G *DISP App 5.2.15R* means that a *respondent* who sent a *final response* in respect of a *motor finance non-DCA complaint* to a complainant on or after 30 January 2026 must inform that complainant of the usual six-*month* time limit to refer the *complaint* to the *Financial Ombudsman Service* pursuant to *DISP 2.8.2R(1)*.

Section : DISP App 5.3 General record retention

DISP App 5.3.1 R

(1) *Lenders* and *credit brokers* must retain and preserve records:

1. (a) relating to any *regulated credit agreement* entered into before 28 January 2021;
2. (b) which meet the requirements in *DISP App 5.1.2R(1)(b) and (c)*; and
3. (c) that are or could be relevant to the handling of existing or future *complaints* or civil claims relating to *discretionary commission arrangements*.

(2) The requirement in (1) applies:

(a) regardless of whether a *relevant motor finance DCA complaint* has been made; and

(b) in the period beginning with 11 January 2024 and ending with 11 April 2031.

DISP App 5.3.1A R

(1) *Lenders*, *owners* and *credit brokers* must also retain and preserve records:

1. (a) relating to any *regulated credit agreement* or *regulated consumer hire agreement* where that agreement, in whole or part, financed the purchase of a motor vehicle, or a motor vehicle was bailed or hired under the agreement; and
2. (b) where they are or could be relevant to the handling of existing or future *complaints* or civil claims relating to the payment (directly or indirectly) of any commission, fee or other financial consideration or remuneration including a benefit of any kind to a *credit broker*.

(2) The requirement in (1) applies:

(a) regardless of whether a *motor finance non-DCA complaint* or a *relevant motor finance DCA complaint* has been made; and

(b) in the period beginning with 20 December 2024 and ending with 11 April 2031.

DISP App 5.3.2 E

The following will be relevant records for the purposes of the requirements in *DISP App 5.3.1R* and *5.3.1AR*:

(1) the *regulated credit agreement* or the *regulated consumer hire agreement*;

(2) records of the commission and/or remuneration arrangements relating to the *regulated credit agreement* or the *regulated consumer hire agreement*;

(3) records of the payment (directly or indirectly) of any commission, fee, other financial consideration or remuneration including a benefit of any kind paid to the *credit broker* in connection with the *regulated credit agreement* or the *regulated consumer hire agreement*, including details of its structure, amount and calculation;

(4) customer files and records, including any agreement setting out the nature of the services offered, any customer transactions and payments; and

(5) communications with the customer.